

I. Request

1. The Secretary of State for the Presidency of the Council of Ministers requested the National Data Protection Commission (CNPd) to issue an opinion on the Draft Decree-Law 431/XXIV/2024, which amends Decree-Law No. 109-E/2021, of December 9, which creates the Anti-Corruption Mechanism and establishes the General Regime for the Prevention of Corruption.
2. The CNPD issues an opinion within the scope of its powers and competencies as an independent administrative authority with the authority to oversee the processing of personal data, conferred by paragraph c) of No. 1 of Article 44 in conjunction with the provisions of No. 2 of Article 30 and No. 1 of Article 43, all of Law No. 59/2019, of August 8, which transposed Directive 2016/680 of the European Parliament and of the Council, of April 27, 2016.

II. Analysis

3. The Draft Decree-Law in question, submitted for the CNPD's consideration (hereinafter referred to as the Draft), aims, according to Article 1, to amend Decree-Law No. 109-E/2021, of December 9, which creates the National Anti-Corruption Mechanism (MENAC) and establishes the General Regime for the Prevention of Corruption (RGPC).
4. The CNPD's opinion focuses only on the provisions of the Draft Decree-Law that foresee or imply the processing of personal data, or are directly related to them, in order to assess their compliance with the rules regarding the processing of personal data for the purposes of prevention, detection, investigation, or repression of criminal offenses, as approved by Law No. 59/2019, of August 8.
5. Before beginning the analysis of the proposed text, the CNPD notes that in the final part of the Preamble, where the consulted entities are identified, there is an omission regarding the reference that an opinion was obtained from the National Data Protection Commission.
6. As stated in the Preamble of the Decree-Law, the changes now introduced aim to align the organization and functioning of MENAC with the priorities set out in the Anti-Corruption Agenda adopted by the Government on June 20, 2024, for that Mechanism, intending to streamline its operation and make its action operational, endowing it with effectiveness, particularly through the redefinition of its internal structure and governance model, and ensuring greater operability of the body.

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7. To achieve that goal, the structure of MENAC is altered, eliminating the positions of President and Vice-President, which are replaced by a collegial body, the Board of Directors, composed of a President and two members, the composition of the Advisory Council is modified, and a Single Supervisory Body is created, with its respective competencies provided for.
8. On the other hand, regarding the services, the two commissions currently provided for—the Monitoring Commission and the Sanctions Commission—are eliminated, and now the Planning, Prevention, and Information Unit and the Supervision and Offenses Unit will exist, which results in the reassignment of the competencies of the previous commissions to these units and the Board of Directors.
9. Thus, it is provided in the newly added Article 13-D that it is the responsibility of the Planning, Prevention, and Information Unit, among other competencies, to "create the information bank and operate and update the platform provided for in paragraph i) of No. 3 of Article 2" and "[p]roduce, collect, and disseminate information on corruption and related offenses" (subparagraphs d) and h) of No. 1, respectively), which were previously assigned to the Monitoring Unit.
10. The CNPD had the opportunity to express its opinion through Opinion/2021/66 on the Draft Law that gave rise to Decree-Law No. 109-E/2021, of December 9, noting there the lack of regulatory provisions that establish relevant aspects regarding data protection, with the observations made there still valid concerning some provisions then foreseen and that remain in the new version with minor terminological changes.
11. In particular, it noted that the nature of the information to be collected was not clarified, nor was it

integrated into the information bank, and assuming that such banks include personal data, what categories of personal data could be included there. The final wording replaces the observation made by the CNPD since personal data is also information. Furthermore, it noted that the generic and broad nature of those provisions does not fulfill the guiding function expected of legal norms, nor does it incorporate any guarantees of citizens' rights in a context of data processing that has a restrictive burden on their legal sphere.

12. Moreover, considering the content of No. 2 of Article 5 of Law No. 59/2019, of August 8, which requires that the law legitimizing the processing of personal data specifies the purposes and objectives of the processing, as well as explicitly stating which personal data is subject to processing, it would be desirable to proceed with the normative amendment that aligns the MENAC regime with those legal requirements.

13. On the other hand, in Article 7, titled "Cooperation and Duty of Collaboration," it is now provided, in a new number 4 and in an innovative manner, that "[w]ithout prejudice to the secrecy of justice, they must be sent to MENAC."

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copies of all decisions of archiving, of accusation, of pronouncement or non-pronouncement, acquittal or conviction sentences regarding facts stated in item g) of paragraph 3 of article 2.^o1», with no other provision allowing for the assessment of the compatibility of this procedure with the personal data protection regime.

14. In fact, on one hand, nothing is mentioned regarding the entity or entities that have the duty to transmit such information to MENAC, which needs to be clarified, as only by knowing which entity bears the duty can compliance be demanded.

15. On the other hand, it is not stated whether these decisions are transmitted in raw form, or if they will be transmitted after a process of pseudonymization or anonymization, which will depend on the purposes of the information transmission, which is also not specified, namely it is not stated whether it will integrate the aforementioned information bank.

16. If it is understood that it is sufficient, to fulfill the purposes of acquiring this information by MENAC, that the decisions are anonymized, it would have to be clarified who would be responsible for that anonymization, whether it is the entity that issued the decisions, the entity that will transmit them to MENAC, or MENAC itself. In any case, only by knowing the purposes of the information acquisition by MENAC can one assess the compliance of the process with data protection standards.

17. If the acquisition of information by MENAC aims to understand the phenomenon and not to identify the agents of the facts, which seems to be the most appropriate considering its competencies, then the decisions should be transmitted already anonymized.

18. In any case, the procedure for the anonymization of the data, if it exists, must be established, and, especially in the case of being transmitted with personal data, the regime for that processing must be provided, including transmission and retention periods, as well as ensuring security measures, assuming that such matters will be regulated by a protocol to be established between MENAC and the entities responsible for transmitting such information, which must be submitted for the assessment of the CNPD.

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That is, decisions related to the following crimes:

item g) of paragraph 3 of article 2.^o "Collect and organize information related to the prevention and repression of active or passive corruption, the improper receipt and offering of advantages, influence peddling, fraud in obtaining or diverting subsidies, grants or credits, unlawful appropriation of public goods, harmful administration, embezzlement, economic participation in business, abuse of power, violation of the duty of secrecy and money laundering of advantages arising from these crimes, as well as acquisitions of real estate or securities as a consequence of the unlawful obtaining or use of insider information in the exercise of functions in the Public Administration or in the public business sector."

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under the law, and which regulates, among other aspects, also the matter relating to the rights of data

subjects and how they can exercise them, aspects that are absolutely omitted in the Project.

III. Conclusion

19. With the grounds set forth above, the CNPD recommends that:

- a. Given the provision for various treatments of personal data, and because the reservations raised in Opinion/2021/66 remain valid, the main elements of those treatments be regulated, at least indicating the personal data subject to processing, namely, specifying the personal data that integrate or may integrate the "Information Bank" referred to in item d) of paragraph 1 of article 13.º-D of the Project;
- b. The manner in which data subjects can exercise their rights be regulated;
- c. The regime regarding the communication of decisions, provided for in paragraph 4 of article 7.º of the Project, be further detailed as indicated above.

Lisbon, March 10, 2025

Ana Lourenço (Rapporteur)

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